Public Health

To: **Boulder County Commissioners**

From: **Chuck Stout**

Date: **April 30, 2003**

RE: **Cemex: Tire-derived fuel**

I wanted to inform you of our efforts to review the air quality and associated human health issues associated with the Cemex Company proposal to burn tires as a supplemental fuel. I know that you have a meeting on Thursday, May 8 to review the Cemex Certificate of Designation. I thought that it would be useful for you to know about the efforts we have underway that are associated with this issue.

The Environmental Health Division has collected air emissions and health risk data on the use of tire derived fuel from across the country. This information indicates that in some plants burning tires results in an increase in air emissions and human health risk and in other plants there is a decrease. We have had a number of individuals who live in close proximity to the plant attend Board of Health meetings to discuss their concerns.

To determine the impacts of tire-derived fuel at Cemex, the Division is currently evaluating an air emissions report and human health evaluation report commissioned by Cemex. To assist in this evaluation, we have requested that a credible third party -- the Agency for Toxic Substances and Disease Registry (ATSDR) -- review these reports and provide an assessment of the potential human health risks. We expect the results of this evaluation will be available by the end of May and plan to brief the Board of Health on these findings at their June meeting.

I would be grateful if you would ask that individuals who have concerns about air quality and potential associated risk factors to attend our Board of Health meeting to present us with their issues. Following our Board of Health meeting it is our intention to communicate our findings to the Colorado Department of Public Health and Environment where decisions will be made about the permit to allow or disallow the use of tire-derived fuel at the Boulder County Cemex plant. This should also make your meeting, which is narrowly focused on the Certificate of Designation, a bit more manageable.

I hope this information is helpful to you as you prepare for your meeting on May 8. Please let me know if you would like more information on these efforts.

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

RECEIVED
MAY 2 2003
BOULDER COUNTY
LAND USE DEPT.

MEMO TO: Adjacent Property Owners and Interested Others
FROM: David Callahan, Current Planning Manager
DATE: Thursday, April 17, 2003
RE: **PUBLIC MEETING**
BOULDER COUNTY, COLORADO
BOARD OF COUNTY COMMISSIONERS

A Request for a Determination Concerning Use by Special Review #SU-88-21(Lyons Rubber Recycling Facility) as to Whether That Permit has Lapsed as Defined in Article 4-604 (C) of the Land Use Code.

Location: At 5134 Ute Highway
Zoning: General Industrial (GI)
Applicant: Cemex / John Lohr, Lyons Cement Plant

DATE: **May 8, 2003**
TIME: **2:00 p.m.**
PLACE: **Hearing Room, Third Floor, County Courthouse, Boulder**

Notice is hereby given that the Board of County Commissioners will hold a public meeting at the time and place specified above. All interested parties are requested to attend the meeting and aid the Commissioners in their consideration.

The Land Use staff, and County Commissioners value comments from individuals. If you are so inclined, please check the appropriate response below or send a letter. Late responses will be reviewed as the process permits; all comments will be made part of the public record and given to the applicant. Only portions of the submitted documents have been enclosed; you are welcome to review the entire file at the Land Use Department, 13th and Spruce, Boulder. (Ninety-seven pages of support materials have been submitted by Cemex, Inc. The materials include copies of various permits, application forms, letters, and analyses.) If you have any questions regarding this application, please contact the Land Use Department office.

Please return responses to the above address by **May 1, 2003**.
_____ We have reviewed the proposal and have no conflicts.
__X__ Letter is enclosed.

Signed John Barth PRINTED Name JOHN BARTH, counsel for Sierra Club

Agency or Address P.O. Box 409 Hygiene, CO 80533 303 774-8868

G:\88REF.DOC\03REF.DOC

Paul Danish
County Commissioner

Ronald K. Stewart
County Commissioner

Tom Mayer
County Commissioner

LAW OFFICES OF
JOHN M. BARTH
P.O. BOX 409 • HYGIENE, COLORADO 80533 • (303) 774-8868 • FAX: (303) 774-8899 barthlaw@aol.com

May 1, 2003

By Hand Delivery

David Callahan
Boulder County Land Use Department
2045 13th Street
Boulder, CO 80302

Re: Boulder County Board of County Commissioners' May 8, 2003 Public Meeting
Cemex Special Use Permit # SU-88-21

Dear Mr. Callahan:

This letter and accompanying attachments are being submitted for the consideration of the Boulder County Board of County Commissioners at the above-referenced hearing. I am counsel for Sierra Club in *Sierra Club v. Graham Billingsley and Boulder County Board of Adjustment*, Case No. 02 CV 1616 (Boulder County District Court). This letter and attachments are being submitted on behalf of Sierra Club. The focus of this public meeting is Special Use Permit # SU-88-21, a copy of which is attached hereto. *See, Special Use Permit # SU-88-21 and Resolution 90-59 attached hereto.*

Issues regarding the legal validity of Special Use permit # SU-88-21 are presently subject to litigation in Boulder County District Court. Boulder County District Judge Roxanne Bailin has asserted jurisdiction over these issues. On March 4, 2003, Judge Bailin issued a decision regarding Special Use Permit # SU-88-21. *See, Ruling and Order dated March 4, 2003 which is attached hereto.* In her decision, Judge Bailing ruled that "BCLUC Article 4-604(c) must be applied to the Permit". *See, page 8.* Thus, the sole remaining factual issue is whether "tires have been burned under the Permit for a period of five years since the enactment of 4-604(C)". *See, page 8.* Judge Bailin ordered that this factual issue be remanded to the Boulder County Board of Adjustment for a determination. Accordingly, the Board of County Commissioners does not have jurisdiction over the remaining factual issue or the legal validity of Special Use Permit # SU -88-21. By order of the Court, this matter must be decided by the Boulder County Board of Adjustment and/or Boulder County District Court. The Board of County Commissioners does not have authority to ignore, or violate, this Order of the Court.

The Board of County Commissioners is an elected executive branch of government, not a judicial body. By virtue of the pending litigation, the remaining issues regarding the legal validity of Special Use Permit # SU-88-21 remain in the jurisdiction of the judicial branch of government--namely Boulder County District Court. Any determination by the Board of County

Commissioners regarding the validity of Special Use Permit # SU-88-21 would violate both the separation of powers provision of the State constitution, as well as the Order of the Boulder County District Court. Accordingly, the Board of County Commissioners should defer to the March 4, 2003 Ruling and Order of Judge Bailin.

However, in the event the Board of County Commissioners chooses to ignore the Court's Ruling and Order, only one factual conclusion can be reached--namely that tires were not burned under Special Use Permit # SU-88-21 for a continuous five year period ***after*** the date of enactment of Article 4-604(C). Article 4-604(C) became effective on September 5, 1996. *See, Article 4-604(C) attached.* Cemex has recently admitted, "actual burning of tires did not occur between 1993 and 2002." *See, Letter from Banks and Gesso, LLC dated April 10, 2003, which is attached hereto.* This fact is confirmed by Boulder County Land Use Director Graham Billingsley who determined, "Southdown/Cemex has not burned tires under the permit since 1993." *See, Letter from Graham Billingsley dated September 5, 2002 which is attached hereto.* Accordingly, both Cemex and Boulder County Land Use admit that there has been a continuous five year period of tire burning inactivity since the date of enactment of Article 4-604(C) (September 5, 1996-September 5, 2001).

Article 4-604(C) states, "if this period of inactivity occurs, the use ***may not be recommenced***" unless Cemex obtains a new Special Use permit. *See, Article 4-604(C) attached hereto (emphasis added).* This conclusion is supported by Judge Bailin's decision in which she states that if "such a period of inactivity occurred, then the Permit shall have lapsed and shall be of no further force or effect." *See, March 4, 2003 Ruling and Order, page 8.* In other words, because of the five year period of tire burning inactivity, Cemex no longer has a special use permit to burn tires at its Lyons Cement Plant.

Cemex requests that the Board of County Commissioners "in its discretion, not enforce" Article 4-604(C). The Boulder County Commissioners does not have the discretion to ignore Article 4-604(C) or Judge Bailin's March 4, 2003 Ruling and Order. There is nothing in Article 4-604(C), or any other provision of the Boulder County Land Use Code, allowing the Boulder County Commissioners to "not enforce" Article 4-604(C). Special Use Permit # SU -88-21 lapsed, by operation of law, on September 5, 2001. Thus, the Board of County Commissioners has no legal authority to grant the relief requested by Cemex.

In summary, the Boulder County Board of Commissioners is not a "court of appeals". If Cemex is unhappy with Judge Bailin's March 4, 2003 Ruling and Order, they have the right to appeal that decision to a higher court. Cemex must follow established judicial procedures and orders. However, Cemex is essentially asking the Board of County Commissioners to serve as a court of appeals and reverse a judicial decision by the Boulder County District Court. Because

the Board of County Commissioners does not have the authority to reverse a decision of the judicial branch, Cemex's request should be denied. Instead, the Board of County Commissioners should direct Cemex to comply with Judge Bailin's March 3, 2003 Ruling and Order and seek resolution of these issues before the Boulder County Board of Adjustment and/or the Colorado Court of Appeals.

Thank you for the opportunity to submit this letter and attachments. I plan to be present at the May 8, 2003 public meeting and would be happy to answer any questions you have at that time.

Sincerely,



John M. Barth

Attachments
cc: Sierra Club
Jennifer Sullivan, Faegre & Benson

η-1

#01007295 10/10/89 10:18 AM REAL ESTATE RECORDS
F1598 CHARLOTTE HOUSTON BOULDER CNTY CO RECORDER

LYONS RUBBER RECYCLING FACILITY
DOCKET #SU-88-21

SOUTHWESTERN PORTLAND CEMENT COMPANY

JST

This Agreement is made on this 5th day of ~~August~~ September, 1989, by and between the Board of County Commissioners of Boulder County, Colorado, hereinafter referred to as the "County", and Southwestern Portland Cement Company, hereinafter called the "Company".

Whereas the Company has submitted to County for special use approval for a Rubber Recycling Facility, hereinafter referred to as "Project", and whereas County has fully considered the proposed Project and the requirements to be imposed upon the Project and properties by reason of the proposed Project.

Whereas the County and the Company mutually acknowledge and agree that the matters herein set forth are reasonable conditions and requirements to be imposed by the County in connection with its approval of the Project.

1. That Southwestern Portland Cement Company obtain its revised Colorado Air Pollution Emission permit before beginning to accept or burn shredded or whole tires.

2. That starting on September 1, 1989 and on September 1st of each subsequent year, an annual report will be submitted to the Boulder County Land Use and Health Department and the Colorado Department of Health. This report shall indicate on a monthly basis and an annual total, the weight of whole and shredded tires received, the weight of whole tires shredded, the weight of whole and shredded tires utilized in the kiln, and the weight of whole and shredded tires in storage.

3. That a RCRA-EP toxicity analysis, pursuant to 40 CFR § 261-Appendix II, of the kiln dust shall be performed for each 1,500 tons of tire material utilized during the first three months and for each 3,000 tons of material utilized in the following four months. A minimum of three separate such analyses shall be provided within the first seven months of operation. These results shall be reported to the Boulder County Land Use and Health Department and to the State Health Department.

4. That mosquito and other vector control programs approved by the Boulder County Health Department be instituted as necessary to ensure that the tire storage areas do not increase area vector populations.

5. That the Company develop and implement a tire fire coordination program with Lyons' and Hygiene's fire departments prior to bringing tires to the site. This program should identify the personnel, equipment, materials and sequence of events that will be used to fight a tire fire. All identified personnel should be trained in the program. A report detailing the program shall be submitted to the Boulder County Land Use and Health Departments and to the State Health Department.

6. That surface run-off will be diverted away from the shredded and whole tire storage areas.

7. That within three months of closure of the kiln, all remaining tires will be either recycled or properly disposed of.

8. That any required flood plain development permit be approved by Boulder County Public Works Department.

9. That a report be made to the Planning Commission and Board of County Commissioners of the results and inspection of the operation made after one year of operation.

10. The County may conduct a periodic review of the status of the development which is the subject of this agreement, said review to occur at 12-month intervals.

11. In consideration of the above conditions and covenants, the County agrees to grant a vested property right for the Project to proceed pursuant to the terms of this agreement. The vesting granted herein shall have a term of three years subject to the provisions for modification and termination contained herein. The Company may request an extension of said vested right.

12. The vested property right granted herein shall be terminated if the County determines that the Company is not in good faith compliance with the terms of the agreement.

13. Subsequent regulations enacted by the County shall be applicable to the Project if necessary to protect the health and safety of the inhabitants of Boulder County or if general in nature and applicable to all properties subject to County land use regulations.

14. If the County adopts a county-wide road impact fee system requiring payment of fees prior to the issuance of building permits, Company shall participate in the appropriate road impact fee fund if, subsequent to adoption of the fee system, any building permits are sought by the Company pursuant to this Agreement.

15. This agreement may be cancelled or amended on the mutual consent of the parties or to bring the proposed development into conformance with federal or state law.

16. The Company's compliance with the terms of this agreement may be enforced by any legal means, including, but not limited to termination of the Company's vested right granted herein, revocation of the Company's approval, denial of building permits or action for breach of contract.

17. The terms and conditions of this agreement shall be covenants which run with the lands and inure to the benefit of and are binding upon the heirs, successors and interests and assigns of the parties hereto.

18. This agreement, upon execution, shall be recorded in the records of the Boulder County Clerk and Recorder.

19. That the operation proceed as described in all commitments made of record as a part of this special review and required reviews and permits.

Southwestern Portland Cement Company assumes corporate responsibility for the execution of all requirements contained in this specific agreement.

Boulder County alone may waive or modify requirements herein. The Company shall file for recording with the Boulder County clerk and recorder this agreement, reduced site plan or any other documents required as part of the approval by the Board of County Commissioners of the above-referenced Project.

SOUTHWESTERN PORTLAND CEMENT COMPANY

By: _____

STATE OF ~~COLORADO~~ Texas)
) ss.
COUNTY OF Harris)

The foregoing was acknowledged before me this 5th day of September, 1989 by J. Bruce Hopkins as Ex. V.P. Operations of Southwestern Portland Cement Company, a Delaware corporation, on behalf of such corporation.

Witness my hand and official seal.

My commission expires: 10/09/91

[SEAL]

Notary Public

BOULDER COUNTY:

CHAIR, BOULDER COUNTY
BOARD OF COUNTY
COMMISSIONERS

Attest:

CLERK OF THE BOARD

frbd:fd4

RESOLUTION 90-59

A RESOLUTION CONDITIONALLY APPROVING BOULDER COUNTY LAND USE DOCKET #SU-88-21 ("LYONS RUBBER RECYCLING FACILITY"): A SPECIAL USE, SITE SPECIFIC DEVELOPMENT PLAN, AND SOLID WASTES DISPOSAL SITE CERTIFICATE OF DESIGNATION REQUEST, FOR A RUBBER RECYCLING FACILITY LOCATED ONE-QUARTER MILE SOUTH OF COLORADO HIGHWAY 66, AND ONE MILE EAST OF U.S. HIGHWAY 36, IN SECTIONS 21 and 28, T3N, R70W.

WHEREAS, the Southwest Portland Cement Company ("Applicant") has requested approval for a special use permit under Article 20 of the Boulder County Zoning Resolution, a site specific development plan under Article 19 of the Zoning Resolution, and a certificate of designation under the Solid Wastes Disposal Sites and Facilities Act (C.R.S. Sections 30-20-101, et. seq.), for a rubber recycling facility to use discarded tires as fuel in the manufacture of cement at Applicant's plant, which is located on the property described in the caption to this Resolution, above ("the Subject Property"), in the Existing General Industrial, with Floodplain Overlay, Zoning District, in unincorporated Boulder County; and

WHEREAS, the above-described request was processed and reviewed as Boulder County Land Use Docket #SU-88-21 ("the Docket"), all as further described in the Boulder County Land Use Department Planning Staff's Memorandum and written recommendation to the Boulder County Board of County Commissioners ("the Board") dated May 30, 1989, with its attachments ("the Staff Recommendation"); and

WHEREAS, on April 19, 1989, the Boulder County Planning Commission ("the Planning Commission") held a duly-noticed public hearing on the Docket, and recommended conditional approval of the Docket to the Board; and

WHEREAS, the Waste Management Division of the Colorado Department of Health recommended approval of the Docket, subject to conditions which were included in the Staff Recommendation; and

WHEREAS, on May 30, 1989, the Board held a duly-noticed public hearing on the Docket ("the Public Hearing"), at which time the Board considered the Staff Recommendation and the recommendation of the Planning Commission, and also considered documents and testimony presented by the County Land Use Department Planning Staff, as well as by a representative of the Boulder County Health Department; Gerald Anderson, Lyons Cement Plant Manager, on behalf of Applicant; LaVern Johnson, Trustee of the Town of Lyons; and a member of the public; and

WHEREAS, based on the Public Hearing, the Board finds as follows:

1. The Docket meets the criteria for special use approval set forth in Article 20-301 of the Boulder County Zoning

Resolution, and for a solid wastes disposal site and facility certificate of designation under Section 30-20-104, C.R.S., subject to the following conditions:

A. That Applicant obtain its revised Colorado Air Pollution Emission Permit before beginning to accept or burn shredded or whole tires.

B. That starting on August 1, 1989, and on August 1 of each subsequent year, an annual report will be submitted to the Boulder County Land Use and Health Departments and the Colorado Department of Health. This report shall indicate on a monthly basis and annual total, the weight of whole and shredded tires received, the weight of whole tires shredded, the weight of whole and shredded tires utilized in the kiln, and the weight of whole and shredded tires in storage.

C. That RCRA EPA toxicity analyses, and analysis for toxic trace elements, of the kiln dust shall be performed for each 1,500 tons of tire material utilized during the first three months and for each 3,000 tons of material utilized in the following four months. A minimum of three separate such analyses shall be provided within the first seven months of operation. These results shall be reported to the Boulder County Land Use and Health Departments and to the Colorado Health Department.

D. That mosquito and other vector control programs approved by the Boulder County Health Department be instituted as necessary to ensure that the tire storage areas do not increase area vector populations.

E. That Applicant develop and implement a tire fire coordination program with the Lyons and Hygiene Fire Departments prior to bringing tires to the site. This program should identify the personnel, equipment, materials, and sequence of events that will be used to fight a tire fire. All identified personnel should be trained in the program. A report detailing the program shall be submitted to the Boulder County Land Use and Health Departments and to the Colorado Health Department.

F. That surface runoff will be diverted away from the shredded and whole tire storage areas.

G. That within three months of closure of the kiln, all remaining tires will be either recycled or properly disposed of.

H. That any required Floodplain Development Permit be approved by the Boulder County Public Works Department.

I. That a report be made to the Planning Commission and

Board of County Commissioners of the results of an inspection of the operation made after one year of operation.

J. That the operation proceed as described in all commitments made of record as a part of this Special Review and other required reviews and permits.

2. The Docket meets the criteria for approval of a site specific development plan set forth in Article 19-301 of the Boulder County Zoning Resolution, subject to the conditions stated above.

NOW, THEREFORE, BE IT RESOLVED that the Docket is hereby conditionally approved, on the basis and terms set forth in this Resolution, above.

A motion to approve the Docket, as stated above, was made by Commissioner Page, seconded by Commissioner Stewart, and passed by a 3-0 vote.

ADOPTED this 1st day of Feb., 1990, nunc pro tunc the 30th day of May, 1989.

BOARD OF COUNTY COMMISSIONERS OF BOULDER COUNTY:

Ronald K. Stewart

Ronald K. Stewart, Chair

Homer Page

Homer Page, Vice Chair

Josephine W. Heath

Josephine W. Heath

ATTEST:

Clerk to the Board

DISTRICT COURT, BOULDER COUNTY, STATE OF COLORADO
Case No. 02 CV 1616 Division 5

RULING AND ORDER RE
PLAINTIFF'S SECOND CAUSE OF ACTION

E-FILED
MAR 04 2003

SIERRA CLUB,
Plaintiff,

v.

GRAHAM BILLINGSLEY, in his official capacity as Director of Boulder County Land Use Department, and BOULDER COUNTY BOARD OF ADJUSTMENT,
Defendants.

On March 4, 2003, the Court took the following actions in the above-captioned case and directs the Clerk to enter these proceedings in the register of actions.

This matter comes before the Court on the Plaintiff's Second Cause of Action in its complaint. The Second Cause of Action seeks relief under C.R.C.P. 106(a)(4) on the basis that Defendants Billingsley and Boulder County Board of Adjustment (the "BOA") incorrectly failed to apply the lapse provisions of BLUC Article 4-604(C) to special use permit SU-88-21 (the "Permit"). The Plaintiffs have filed a brief in support of their cause of action. Defendants Billingsley and BOA jointly filed an answer brief and Defendant Intervenor Cemex, Inc. ("Cemex") filed a separate answer brief. The Plaintiff filed a consolidated reply to the Defendants answer briefs. Having considered the parties' briefs and the applicable law, the Court enters the following Ruling and Order.

I. STANDARD OF REVIEW

Rule 106(a)(4) provides that the Court may grant relief "where any governmental body or officer...exercising judicial or quasi-judicial functions has exceeded its jurisdiction or abused its discretion, and there is no plain, speedy and adequate remedy otherwise provided by law." C.R.C.P. 106(a)(4). The Court is limited to a determination based on the evidence in the record before the defendant body or officer. C.R.C.P. 106(a)(4)(I). If the Court determines that the hearing officer's ruling was based on competent evidence, the order will not be overturned. Ad Two, Inc. v. City and County of Denver, 983 P.2d 128 (Colo. App. 1999). There is no competent evidence when the governmental body's decision is so devoid of evidentiary support that it can only be explained as an arbitrary and capricious exercise of authority. Ross v. Fire and Police Pension Ass'n, 713 P.2d 1304, 1309 (Colo. 1986). If the governmental body misinterpreted the law, it may constitute an abuse of discretion. Electric Power Research

Institute, Inc. v. City and County of Denver, 737 P.2d 822, 825-26 (Colo. 1987). However, all reasonable doubts as to the correctness of administrative rulings must be resolved in favor of the governmental body. Hadley v. Moffat County School Dist. RE-1, 681 P.2d 938, 944 (Colo. 1984).

II. FACTS

On February 1, 1990, the Boulder County Board of County Commissioners (the "BCC") approved Resolution 90-59 (the "Resolution").[1] The Resolution conditionally approved a proposal by Southwestern Portland Cement Company ("Southwestern") to use tires as an alternative fuel source at its cement plant in Lyons (the "Project"). In connection with the approval of the Project, on September 5, 1989, Southwestern and the BCC entered into an agreement (the "Agreement"). The Agreement set forth the conditions and requirements to be imposed upon Southwestern in connection with the approval of the Project. Under the Agreement, the BCC also granted Southwestern a vested property right in the Project. The vested property right was granted for "a term of three years subject to the provisions for modification and termination contained [in the Agreement]." The Agreement also provided that:

> Subsequent regulations enacted by the [BCC] shall be applicable to the Project if necessary to protect the health and safety of the inhabitants of Boulder County or if general in nature and applicable to all properties subject to [BCC] land use regulations.

Southwestern complied with the conditions placed upon the Project and began burning tires in early 1990.

In 1996, the BCC amended the Boulder County Land Use Code (the "Code") to add Article 4-604(C). Article 4-604 provides as follows:

> **4-604 Limitation of Uses by Special Review**
>
> A. Subject to vested rights, no use by special review shall commence operation of construction later than five years from the date of the [BCC] approval or conditional approval.
>
> B. Any approved use by special review which does not significantly commence operation or construction in any portion of the special use permit within five calendar years after the use has received [BCC]

[1] The resolution was entitled: A Resolution Conditionally Approving Boulder County Land Use Docket #SU-88-21 ("Lyons Rubber Recycling Facility"): A Special Use, Site Specific Development Plan, and Solid Wastes Disposal Site Certificate of Designation Request, for a Rubber Recycling Facility Located One-Quarter Mile South of Colorado Highway 66, and One Mile East of U.S. Highway 36, in Sections 21 and 28, T3N, R70W.

approval, shall lapse, and shall be of no further force and effect unless a new discretionary approval is granted under the Code. If a vesting period of longer than five years is expressly approved as part of the special use permit, the approval shall lapse if operation or construction is not commenced within the vesting period.

C. Any approved use by special review which commences operation or construction as required under Subsection (B), immediately above, shall lapse, and shall be of no further force and effect, if the use is inactive for any continuous five-year period. If this period of inactivity occurs, the use may not be recommenced without a new discretionary approval granted under this Code. An approved special use shall be deemed inactive under this Subsection (c) if there has been no activity under any portion of the special use permit for a continuous period of five years or more as a result of causes within the control of the special use permitee or agent.

In 2001, Defendant Intervenor Cemex, Inc. ("Cemex") acquired the Lyons cement plant. Sometime in late August 2002, Cemex notified the BCC that it intended to again burn tires for fuel at its cement plant in Lyons, pending the results of a test burn to ensure compliance with applicable air emissions limitations.

On September 5, 2002 Defendant Billingsley, in his official capacity as Director of the Boulder County Land Use Department, issued a written determination concluding that the 1990 special use permit/certificate of designation for the Project was still in effect. Defendant Billingsley noted that based on the information available to him, tires had not been burned at the Lyons cement plant since 1993, but concluded that it was not appropriate to apply the lapse provision in BLUC Article 4-604(C), which was added to the Code in 1996, retroactively to the 1990 approval.

On October 1, 2002, the Plaintiff brought this action and a request for review of Defendant Billingsley's decision by the BOA. On November 6, 2002, the BOA held a hearing in which it upheld Defendant Billingsley's determination.

III. ARGUMENT

The Plaintiff contends that it is entitled to relief pursuant to C.R.C.P. 106(a)(4) because Defendants Billingsley and BOA have abused their discretion by misconstruing applicable law and failing to follow their own rules. The Plaintiff argues that BLUC Article 4-604(C) applies to the Permit because it applies to "any approved use by special review" including those that were approved prior to the enactment of BLUC Article 4-604(C). Accordingly, under the Plaintiff's construction, the lapse provision should apply to the Permit.

The Plaintiff further argues that the application of BLUC Article 4-604(C) to

Cemex's proposal to resume tire burning under the Permit is not barred by the Colorado Constitution as an *ex post facto* law because it does not impair vested rights acquired under existing law. The Plaintiff contends that the five-year period of inactivity had occurred since the enactment of BLUC Article 4-604(C). The Plaintiff maintains that Defendant Billingsley has already found that neither Cemex nor its predecessor has burned tires under the Permit since 1993.

The Plaintiff maintains that the statutory vested right given to the Lyons cement plant expired on September 5, 1992. The Plaintiff notes that the Agreement, which was executed on September 5, 1989, provides for a three-year term of vested rights, as does the vested rights statute, and there has been no indication that the term of the vested rights was ever extended.

The Plaintiff argues that by its terms BLUC Article 4-604(C) is mandatory and must be applied to the Permit. The Plaintiff also maintains that the Defendants do not have the discretion to apply BLUC Article 4-604(C) on a case by case basis. According to the Plaintiff, the application of BLUC Article 4-604(C) is not precluded because Cemex's predecessor has finalized the Permit and substantially started operations.

The Plaintiff further contends that Cemex and its predecessors had notice that subsequent amendments to the Code would be applied to the Permit. As a basis for this contention, the Plaintiff cites the provision in the Agreement relating to future amendments and the fact that Boulder County provides public notice of all amendments to the Code.

The Defendants contend that their determination that the lapse provision in BLUC Article 4-604(C) did not apply to the Permit was correct. They maintain that it is inappropriate to apply BLUC Article 4-604(C) retroactively because the article was not drafted to apply retroactively, and BLUC Article 1-900 prevents the retroactive application of BLUC Article 4-604(C). The Defendants further contend that their decision not to apply BLUC Article 4-604(C) retroactively was a discretionary one, which is unreviewable by the Court. They also maintain that their decision was based on competent evidence.

Cemex first argues that the BOA did not abuse their discretion in upholding the Director's decision. Cemex maintains that the record demonstrates that there was competent evidence to support the BOA's decision. As support for the BOA's decision, Cemex points to the Code's presumption of prospective application. According to the Defendants, this means that BLUC Article 4-604(C) can only be applied to permits issued after the enactment of the ordinance. In addition, Cemex points to BLUC Article 1-600, which states that amendments shall not be construed as abating an approved action or vacating or annulling rights unless expressly stated in the amendment.

Cemex points out that the Court owes deference to the decisions of Defendants Billingsley and BOA. Cemex also notes the BCC could have explicitly stated that BLUC

Article 4-604(C) applied to existing permits if had wished to do so. They also contend that their determination was not that BLUC Article 4-604(C) did not apply to the Permit, but that it did not apply to any permits issued prior to the enactment of the amendment.

Cemex argues that the Defendants reasonably interpreted BLUC Article 4-604(C) to avoid constitutional infirmity and manifest unfairness. Cemex contends that it was their intention to avoid the constitutional prohibition against the impairment of vested property rights. Cemex maintains that the vested property rights statute provides the permit holder with three years to perfect a permanent perfected property right under the common law.

Cemex asserts that the Agreement does not justify the retroactive application of BLUC Article 4-604(C). Cemex first maintains that BLUC Article 4-604(C) is not "general in nature and applicable to all properties subject to County land use regulations." In addition, Cemex argues that BLUC Article 4-604(C) is not the type of public safety statute referenced in the Agreement. Cemex further contends that the Plaintiff does not have standing to enforce the terms of the Agreement. Cemex points out that the Agreement specifically provides that "Boulder County alone may waive or modify the requirements [of the Agreement]."

Finally, Cemex contends that even if the Court determines that BLUC Article 4-604(C) is applicable, it must remand the case to Boulder County for further proceedings. Cemex contends that Boulder County has not yet determined whether a five-year lapse has actually occurred. Cemex also argues that even if Boulder County has determined that a lapse has occurred, it is still within their discretion whether to enforce BLUC Article 4-604(C).

IV. MERITS

Although the Court recognizes that discretionary decisions of Defendants Billingsley and BOA are owed deference, the interpretation of 4-604(C) in the instant case is not a discretionary decision. By its terms, the lapse provision applies automatically if there is the requisite period of inactivity. Accordingly, the Court must first determine whether BLUC Article 4-604(C) applies to special use permits that were issued prior to its enactment.

Article 4-604(C) states in relevant part: "[a]ny approved use by special review which commences operation or construction as required under Subsection (B), immediately above, shall lapse, and shall be of no further force and effect, if the use is inactive for any continuous five-year period." In support of their decisions that BLUC Article 4-604(C) did not apply to special use permits that had been issued prior to its enactment, Defendants Billingsley and BOA cite the rule of interpretation contained in BLUC Article 1-900(A)(4). That article provides "[i]t is presumed that the requirements of this Code apply to future actions unless otherwise stated."

The Court finds that BLUC Article 4-604(C), when read alone or in conjunction with BLUC Article 1-900(A)(4), applies to all special use permits not merely those approved after the 1996 amendment of the Code. Article 4-604(C) plainly states that it applies to "**any** approved use by special review." (emphasis added). The Court reads "any" to include special use permits approved before and after the enactment of subsection (C). There is no reasonable basis to make a distinction between permits approved before and after the amendment when determining if the lapse provision is applicable. The Court further concludes that although 4-604(C) was intended to apply to special use permits issued prior to its enactment, the lapse period was not intended to include any periods of inactivity prior to the enactment of 4-604(C). This is consistent with the rules of interpretation set forth in 1-900(A)(4). The future action referred to therein refers to the running of the lapse period. Therefor, Cemex's permit for the Project is subject to the 4-604(C) lapse provision, but the permit did not actually lapse unless there was a continuous five-year period of inactivity of the use after the enactment of 4-604(C).

The Defendants further contend that 4-604(C) cannot be applied to the Project because of Cemex's vested rights therein. This argument is based in part on the vested rights granted to Cemex's predecessor by the BCC in the Agreement. On September 5, 1989, the BCC entered into the Agreement with Cemex's predecessor, Southwestern, providing for approval of the Project subject to certain conditions. Southwestern apparently satisfied the conditions of the Agreement and burned tires as alternative fuel until at least 1993. Under the Agreement, the BCC also granted Southwestern a vested property right in the Project.

C.R.S. § 24-68-103 provides that a vested property right is "deemed to be established with respect to any property upon the approval, or conditional approval of a site specific development plan, following notice and public hearing, by the local government in which the property is located." A vested property right is defined in C.R.S. § 24-68-102(5) as "the right to undertake and complete the development and use of property under the terms and conditions of a site specific development plan." In addition, a vested property right, once established, precludes any zoning or land use action by a local government that "would alter, impair, prevent, diminish, impose a moratorium on development, or otherwise delay the development or use of the property as set forth in the site specific development plan" subject to certain exceptions. C.R.S. § 24-68-105(1). A local government can still take zoning and land use action that affects a vested property right if it provides the landowner with just compensation. C.R.S. § 24-68-105(1)(c). The establishment of a vested property right also does "not preclude the application of ordinances or regulations which are general in nature and are applicable to all property subject to land use regulation by a local government, including, but not limited to, building, fire, plumbing, electrical, and mechanical codes. C.R.S. § 24-68-105(2).

The statute also limits the period that a property right is vested for to three years, unless a development agreement with a longer vesting period is adopted as a legislative

act subject to referendum. C.R.S. § 24-68-104. The Agreement, which was not adopted as a legislative act subject to referendum, specifically provided that the vested property rights granted therein were to have a term of three years unless extended. There is no evidence in the record of an extension being granted and neither Cemex, nor Defendant Billingsley, nor the BOA has argued that an extension of the vesting rights was granted by the BCC. Accordingly, Cemex no longer has a statutory vested property right, because that right terminated on September 5, 1992.[2]

Cemex may still have a common law vested right in the Project, but such a right does not preclude the application of 4-604(C).[3] If Cemex has a common law vested right, its only relief is to institute a cause of action seeking just compensation for a taking against the BCC.[4]

The Court also concludes that the application of the lapse provisions of BLUC Article 4-604(C) to special use permits issued prior to its enactment does not violate the constitutional ban on retroactive legislation. Article II, Section 11 of the Colorado Constitution provides:

> No ex post facto law, nor law impairing the obligation of contracts, or retrospective in its operation, or making any irrevocable grant of special privileges, franchises or immunities, shall be passed by the general assembly.

A law is retrospective in operation when it "takes away or impairs vested rights acquired under existing laws, or creates a new obligation, imposes a new duty, or attaches a new disability, with respect to transactions or considerations already past." P-W Investments, Inc. v. City of Westminster, 655 P.2d 1365, 1371 (Colo. 1982), *quoting* Denver, S.P. &

---

[2] Because the Court finds that the Agreement is not applicable to the issue of whether the lapse provisions of BLUC 4-604(C) apply to the Permit, it need not consider the effect of the provision in the Agreement relating to future amendments of the Code or whether the Plaintiff has standing to seek enforcement of provisions of the Agreement.

[3] Article II, Section 15 of the Colorado Constitution provides:

> Private property shall not be taken or damaged, for public or private use, without just compensation. Such compensation shall be ascertained by a board of commissioners, of not less than three freeholders, or by a jury, when required by the owner of the property, in such manner as may be prescribed by law, and until the same shall be paid to the owner, or into court for the owner, the property shall not be needlessly disturbed, or the proprietary rights of the owner therein divested; and whenever an attempt is made to take private property for a use alleged to be public, the question whether the contemplated use be really public shall be a judicial question, and determined as such without regard to any legislative assertion that the use is public.

[4] The Court notes that it seems unlikely that Cemex will be able to prevail on such a claim as it would require Cemex to show that BLUC Article 4-604(C) either does not substantially advance a state interest or prevents an economically viable use of Cemex's property. *See* Van Sickle v. Boyes, 797 P.2d 1267, 1271 (Colo. 1990).

Pac. Ry. v. Woodward, 4 Colo. 162, 167 (1878). But legislation is not unconstitutional simply because it operates on facts that occurred before its adoption. *See* People v. D.K.B., 843 P.2d 1326 (Colo. 1993). The purpose of the constitutional ban on retrospective legislation is to prevent the unfairness that results from changing legal consequences of an act that has occurred. Peoples Natural Gas Div. of Northern Natural Gas Co. v. Public Utils. Comm'n, 590 P.2d 960, 962 (Colo. 1979). In this case, where Cemex had five years after the enactment of the amendment of the Code to comply with the new lapse provision, the application of 4-604(C) clearly does not violate the constitutional ban on retrospective legislation.[5]

Although the Court finds that BLUC Article 4-604(C) must be applied to the Permit, the Court also finds that there has not yet been a determination by Defendant Billingsley or the BOA that no tires have been burned under the Permit for a period of five years since the enactment of 4-604(C). In his written decision, Defendant Billingsley stated: "[b]ased on the information available to us, Southdown/Cemex has not burned tires under the permit since 1993." The Court does not believe that Defendant Billingsley's statement was intended to be a final determination that tires had not in fact been burned since 1993.

V. CONCLUSION

Accordingly, the matter is **remanded** to the BOA for a determination of whether there has been a five-year period of inactivity under the Permit since the enactment of BLUC 4-604(C). If the BOA determines that such a period of inactivity occurred, then the Permit shall have lapsed and shall be of no further force and effect.

BY THE COURT

Roxanne Bailin, District Court Judge

cc: Raymond Petros
Patricia Mayne
John Barth

[5] Cemex also argues that it did not have sufficient notice of the enactment of BLUC Article 4-604(C). This argument is unpersuasive because there is no evidence that the BCC failed to comply with applicable public notice requirements when it enacted the amendment to the Code.

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

September 5, 2002

Mr. John Lohr
Plant Manager
Lyons Plant
P.O. Box 529
Lyons, CO 80540

RE: County Land Use Department Position on Status of County Special Use Permit/Certificate of Designation Approved in Docket #SU-88-21 (County Commissioners' Resolution 90-59 Approving "Lyons Rubber Recycling Facility"), with Regard to Proposed Resuming of Fuel Tire Burning at CEMEX Plant (formerly Southwest Portland Cement Company/Southdown, Inc.)

Dear John:

It has come to this Department's attention that CEMEX is proposing to resume the burning of discarded tires for fuel, pending the results of a test burn which may be conducted in September, 2002. As you know, the Board of County Commissioners approved a special use permit/certificate of designation for this use in 1990, pursuant to the Boulder County Zoning Resolution in effect at the time and the Colorado Solid Waste Disposal Sites and Facilities Act. The conditions of that permit were set forth in Resolution 90-59 of the Board adopted following a public hearing held on May 30, 1989.

CEMEX fulfilled the conditions of approval under the 1990 County special use permit, and proceeded to burn tires pursuant to the permit between 1990 and 1993. Although CEMEX burned only shredded tires at that time, the permit allowed for the burning of both shredded and whole tires, with no more than a one-month supply of shredded tires to be stored on site at any one time (equivalent of 150,000 whole tires), and no more than 50,000 whole tires (a 10-day supply) to be stored on site at any one time. (The latter limitations were contained in CEMEX's predecessor's special use permit proposal which was incorporated into the 1990 approval as commitments of record.) Based on the information available to us, Southdown/CEMEX has not burned tires under the permit since 1993.

Jana L. Mendez
County Commissioner

Ronald K. Stewart
County Commissioner

Paul Danish
County Commissioner

This Department has determined that the 1990 special use permit/certificate of designation for this use is still in effect. We have reached this conclusion notwithstanding 1996 amendments to the Boulder County Land Use Code, which imposed a "lapse" provision on special use permits under which operations cease for a continuous period of five years or more (see Article 4-604(C) of the Land Use Code). Since CEMEX's predecessor finalized its permit and substantially commenced operations under the permit in the 1990-1993 period, we have determined that it is not appropriate to apply the 1996 lapse provision retroactively to the 1990 approval.

The Land Use Department has been in recent communication regarding the 1990 permit with the County Health Department, State Air Quality Control Division, and State Solid Waste Division. We understand that CEMEX's current air emissions permit would allow for the proposed September test burn to occur, and that all three of these agencies will be monitoring the results of the proposed test burn, if conducted.

This Department specifically requests that, if the test burn occurs and CEMEX determines (following review of the results by the appropriate agencies) to resume tire burning, CEMEX then submit to this Department, within a reasonable time prior to resuming burning, a detailed, written proposal for the burning, including numbers and types of tires to be burned, mode and frequency of transport of tires or tire shreds to the CEMEX property, method of tire storage prior to burning, any new construction required to accommodate the tire burning process, and a statement of continued compliance with (as well as any anticipated deviations from) each of the conditions of approval specified in Resolution 90-59. Based on this written proposal, the County will determine whether the resumed burning constitutes a substantial modification to the 1990 special use permit/certificate of designation. If the County determines that a substantial modification exists, our regulations require that CEMEX obtain an amendment to the 1990 permit/certificate of designation, through the County's special use process. If no substantial changes to the 1990 approval are presented, CEMEX may resume burning discarded tires under the 1990 permit, subject, of course, to compliance with all other applicable agency requirements.

Thank you for your attention to this matter.

Sincerely,

Graham S. Billingsley
Land Use Director

cc: Marianne Reichert, Boulder County Constituent Officer
Jim Burrus, Boulder County Public Information Officer
Dickey Lee Hullinghorst, Boulder County Intergovernmental Relations Director
H. Lawrence Hoyt, Boulder County Attorney
Barbara Andrews, Assistant Boulder County Attorney

Jeff Zayach, Environmental Health Manager, Boulder County Health Department
Pam Millmoe, Boulder County Health Department
Bonnie Greenwood, Boulder County Health Department
David Ouimette, Manager, Stationary Source Program, Air Quality Control Division, Colorado Department of Public Health and Environment
Glenn Mallory, Solid Waste Unit Leader, Compliance Program, Colorado Department of Public Health and Environment (4300 Cherry Creek Drive S., Denver, CO 80246-1530)

Banks and Gesso, LLC

720 Kipling St.,Suite117
Lakewood, Colorado 80215

(303) 274-4277
Fax (303) 274-8329
www.banksandgesso.com

April 10, 2003

Mr. Graham Billingsley
Director
Boulder County Land Use Department
Courthouse Annex Building
2045 13th Street
Boulder, CO 80306

RE: Request for a Determination Concerning Use by Special Review #SU-88-21 (Lyons Rubber Recycling Facility) as to Whether That Permit Has Lapsed as Defined in Article 4-604(C) of the Land Use Code.

Dear Mr. Billingsley:

Cemex, Inc. (formerly known as Southdown, Inc., and successor of merger to Southwestern Portland Cement Co.) is requesting that the Board of County Commissioners make a determination on the above referenced matter. This letter contains Cemex's position on the issue and a chronological documentation to support that position.

Tire Derived Fuel (TDF) use and/or tire storage was implemented at the Lyons Plant between 1989 and 1993. Although actual burning of tires did not occur between 1993 and 2002 for technical and economic reasons, it has always been the intent of management to use TDF when the technical and economic conditions were suitable. To this end, Cemex and its predecessors have continued the policy of maintaining permits and facilities related to TDF use while working to promote its use both locally and at the corporate level.

By this request, Cemex does not agree that the lapse provision of Article 4-604(C) is retroactively applicable to permits issued prior to its enactment in 1996. This issue remains the subject of litigation in Boulder County District Court, Case No. 02CV1616, and Cemex reserves the right to appeal any final determination on this issue by that court, and the right to pursue any claim against Boulder County in that regard. The purpose of this request is to facilitate an expedited resolution of this issue.

Article 4-604C of the Land Use Code states in part "...An approved special use shall be deemed inactive...if there has been no activity under any portion of the special use

permit for a continuous period of five years...". Cemex's activity under the Special use permit includes at least the following:

- Continuous use of the kiln and the burning of fuel in the kiln;
- Maintenance of State and local permits and compliance with the conditions of those permits;
- Legal and consulting activity related to the Special Use Permit;
- Correspondence, design work, trial burns, emissions testing and other work related to the Special Use Permit;
- Annual reports, inspections, monitoring, etc.;
- Maintenance of financial assurances associated with the Special Use Permit;
- Corporate activity and expense related to the promotion and implementation of TDF use company-wide.

Also, we interpret this provision of the code as meaning that if there was at least one relevant activity within any five-year span after the adoption of lapse provision regulation 4-604(C), the special use permit cannot be deemed inactive.

Attached to this letter is a preliminary chronological documentation of these items for your consideration of this request. Supplemental information related to corporate activity and expenditure in pursuit of Tire Derived Fuel use will be submitted to the Board prior to or during the public hearing on this issue.

If it is determined that the Special Use Permit has lapsed within the meaning of Article 4-604(C), Cemex would request that the County, in its discretion, not enforce the provision retroactively, given the particular circumstances of this case. Cemex was not given fair notice that the lapse provision could or would be retroactively applied to its permit, especially considering that the County staff and County Board of Adjustment have interpreted the provision as not applying to existing permits. Over the past seven years, Cemex has spent a considerable sum of money pursuing the goal of implementing a process for the use of whole tires as fuel, justifiably relying on its existing permits. In 2002, Cemex spent approximately $150,000 on the TDF test burn.

Please note that Cemex's attorney, Mr. Ray Petros, contributed to the preparation of this letter.

Thank you for your attention to these matters. Please have your staff contact John Lohr or myself if there are any questions.

Sincerely,

Paul Banks

Attachments

cc: John Lohr, Cemex
Ray Petros, Esq., Petros and White

4-604 Limitation of Uses by Special Review

A. Subject to vested rights, no use by special review shall commence operation or construction later than five years from the date of the Board approval or conditional approval.

B. Any approved use by special review which does not significantly commence operation or construction on any portion of the special use permit within five calendar years after the use has received Board approval, shall lapse, and shall be of no further force and effect unless a new discretionary approval is granted under this Code. If a vesting period of longer than five years is expressly approved as part of the special use permit, the approval shall lapse if operation or construction is not commenced within the vesting period.

C. Any approved use by special review which commences operation or construction as required under Subsection (B), immediately above, shall lapse, and shall be of no further force and effect, if the use is inactive for any continuous five-year period. If this period of inactivity occurs, the use may not be recommenced without a new discretionary approval granted under this Code. An approved special use shall be deemed inactive under this Subsection (c) if there has been no activity under any portion of the special use permit for a continuous period of five years or more as a result of causes within the control of the special use permittee or agent.

Mary L.Dobbs
P.O. Box 19289
Boulder, Co. 80503

Land Use Department
Attn: David Callahan
Fax: 303 441 4856

May 1, 2003

Dear Mr. Callahan,

I am responding to the letter you sent to me dated April 17th, 2003

I would like to go on record as saying I disagree with the proposal you included in your letter. There are a variety of reasons for this that we will discuss with you and the County Commissioners in the event that the meeting requested by Cemex is held as suggested by your letter.

I believe unequivocally that Cemex's permit has lapsed and they should be required to apply for a new permit. The main reason being they have not kept up the required activities to keep their permit in force. For them to suggest that they have continued to perform the required activities clearly disregards the statements they have made to us in the past and seems to call into question whether they are familiar with the Land Use Code governing this situation. For Cemex to burn tires with a lapsed permit would be unacceptable to the surrounding community.

Sincerely,

Mary L. Dobbs

Kenneth W. Dobbs
P.O. Box 19289
Boulder, Co. 80503

Land Use Department
Attn: David Callahan
Fax: 303 441 4856

May 1, 2003

Dear Mr. Callahan,

I am responding to the letter you sent to me dated April 17th, 2003

I would like to go on record as saying I strongly disagree with the proposal by Cemex that their permit has not lapsed and with their reasoning why they should be allowed to blatantly disregard the County Land Use Code.

Cemex's permit has lapsed and they should be required to apply for a new permit. The main reason being they have not kept up the required activities to keep their permit in force. They are unwilling to risk the public input most certainly guaranteed at a hearing with the County Commissioners. Cemex has presented their weak facts to you in their documentation mentioned in your letter. After reading the documents, I find nothing that provides substantial proof that they have continued operating in a way that proves they intended to burn tires for fuel since the original permit was approved. For Cemex to suggest so, strains their credibility in the eyes of our community.

Sincerely,

Kenneth W. Dobbs

Kenneth W. Dobbs

29 April 2003

David Callahan
Land Use Department
Boulder, Colorado

Dear Mr. Callahan:

I write because of my concern about Cemex's plan to burn tires at their plant in Lyons. I have researched the effects of such burning, and none of them are good. If allowed to burn tires, Cemex will be releasing known carcinogens such as dioxins and other deadly toxins all over Boulder Valley. Certainly the people of Boulder County do not deserve this. Please protect our health. There's enough cancer in Boulder County already.

I know of several organic farms situated within a mile of the Cemex plant—they likely could no longer call their produce "organic" if the Cemex plant is allowed to burn tires. Their livelihoods are at stake. Because those farmers do nothing to harm the environment, and because I really like their produce, please support their industry rather than Cemex's.

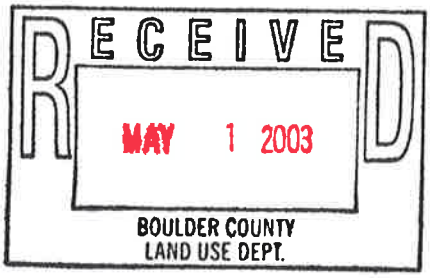
I ask that you reject Cemex's request to burn tires. We do not need any more pollutants in our atmosphere, soil, and water. The Mexican government may allow such anti-environmental activities in the pursuit of making a buck, but I hope that Boulder County has the sense to refuse to comply with a big corporation's unsound plans that put so many people's health at risk.

Sincerely,

Rebecca Dickson
1055 Waite Drive
Boulder, Colorado 80303
303/499-7261

Tamara Goodman
2142 Canyon Blvd. #205
Boulder,CO 80302

Mr David Callahan, Current Planning Manager
Land Use Department
Courthouse Annex
2045 13th Street, Boulder CO 80302



April 26, 2003

Ref: A Request for a Determination Concerning Use by Special Review #SU-88-21 (Lyons Rubber Recycling Facility) as to Whether That Permit has Lapsed as Defined in Article 4-604 (C) of the Land Use Code

Dear Mr Callahan:

I would like to request that the Land Use Office rescind and or deny their approval of Cemex's lapsed permit.

I believe that Cemex Corporation's proposal to burn 700,000 tires per year as supplementary fuel is a well documented threat to Boulder County's public health.

I believe it is inappropriate to allow Cemex to use a lapsed permit to facilitate the burning of tires at their Lyons, Colorado plant.

I request the Land Use Office, the Boulder County Commissioners and the Health Department take immediate action to protect our community from the dangers of Cemex's proposal to burn tires by denying Cemex Corporation's permit.

As an inhabitant of Lyons/ Boulder County and hence at direct risk of harm, I am very concerned about the potential environmental hazard posed by this proposal and respectfully request that you take action to prevent the burning of tires at the Cemex plant.

Thank you in anticipation of your positive action.

Yours sincerely,

Tamara Goodman

David Callahan
Land Use Dept
2045 13th St.
Boulder, Co 80302

Dear Mr. David Callahan,

I am writing to submit comments on the Cemex permit to facilitate the burning of tires at their Lyons, Colorado plant. I strongly urge you to rescind and or deny their approval of the lapsed permit. My opinion is formed upon a number of issues:

- My main concern is health related. People around the world are fighting against these kinds of tire burning plants, because of the hazardous levels of dioxin, metallic elements and organic pollutants that could be emitted. The EPA notes that even at minute levels, exposure to dioxins poses cancer risks and health concerns including possible damage to the immune and reproductive systems. This is not something we want to take lightly.
- I think the land owners near by and communities downwind of the plant have a right to be concerned about toxic emissions. From what I read, their distrust of Cemex's promises is based on past experience. Besides their heal, their properties and businesses are the ones that will suffer while one business, Cemex, profits; that is not justice.
- Burning tires for fuel is obviously a dirty business, there are much cleaner ways of providing fuel and governments need to support those cleaner options not the polluting, unhealthy ones.
- If they have not used the permit in the 5 yr allowed time period, the law as written should apply to them the permit should be rescinded. I have read that Boulder County would not let the application, which is supposed to be a matter of public record, be reviewed by the public. Why is that?
- I think it is inappropriate to bend the rules to allow them to use a lapsed permit to financially benefit while we may suffer the health consequences of tire burning.
- They should reapply and go through the regular application procedure where there must be a public hearing so that we as the residents of Boulder County, who will be affected by this decision, can voice and discuss our concerns. We want to be sure that the plant is capable of meeting high standards of operation that the EPA requires.
- Any claims that burning the tires to "recycle" them is not a legitimate reason. Tires are being recycled in much cleaner ways.

Thank you very much for considering my many concerns, and I hope you will decide to rescind or deny Cemex's approval of the lapsed permit.

Sincerely,

Linda Mark

Linda Mark
1141 A Monroe Drive
Boulder CO 80303

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

MEMO TO: Adjacent Property Owners and Interested Others
FROM: David Callahan, Current Planning Manager
DATE: Thursday, April 17, 2003
RE: **PUBLIC MEETING**
BOULDER COUNTY, COLORADO
BOARD OF COUNTY COMMISSIONERS

A Request for a Determination Concerning Use by Special Review #SU-88-21(Lyons Rubber Recycling Facility) as to Whether That Permit has Lapsed as Defined in Article 4-604 (C) of the Land Use Code.
Location: At 5134 Ute Highway
Zoning: General Industrial (GI)
Applicant: Cemex / John Lohr, Lyons Cement Plant

APR 18 2003

DATE: **May 8, 2003**
TIME: **2:00 p.m.**
PLACE: **Hearing Room, Third Floor, County Courthouse, Boulder**

Notice is hereby given that the Board of County Commissioners will hold a public meeting at the time and place specified above. All interested parties are requested to attend the meeting and aid the Commissioners in their consideration.

The Land Use staff, and County Commissioners value comments from individuals. If you are so inclined, please check the appropriate response below or send a letter. Late responses will be reviewed as the process permits; all comments will be made part of the public record and given to the applicant. Only portions of the submitted documents have been enclosed; you are welcome to review the entire file at the Land Use Department, 13th and Spruce, Boulder. (Ninety-seven pages of support materials have been submitted by Cemex, Inc. The materials include copies of various permits, application forms, letters, and analyses.) If you have any questions regarding this application, please contact the Land Use Department office.

Please return responses to the above address by **May 1, 2003**.
__X__ We have reviewed the proposal and have no conflicts.
_____ Letter is enclosed.

Signed Henry Braly PRINTED Name Henry Braly

Agency or Address 12800 N. Foothills Hwy

G:\88REF.DOC\03REF.DOC

Jana L. Mendez
County Commissioner

Ronald K. Stewart
County Commissioner

Paul Danish
County Commissioner

To: David Callahan

Fax: 441-4856

From: Dan E. Winters; 708 17th Street; Boulder, CO 80302 (303 583-0767)

I am writing to express my concern and displeasure over the possibility that the Land Use Office may allow Cemex to burn tires in order to enhance their bottom line. I strongly oppose any such permit and have provided a marginal amount of evidence in comparison with the vast body of research available to do so. Please do the right thing and do not allow Cemex to contribute to the degradation of our health and environment.

Sincerely, Dan E. Winters

- Cement kilns are designed to make cement, not to be waste incinerators. Cement kilns are not equipped with secondary combustion chambers to assure complete destruction of wastes.
- Cement kilns do not have to meet the same stringent standards of performance and the emission limits required of commercial incineration facilities.
- The EPA concluded, "Exposure to Dioxins, even at minute levels, poses cancer risks and health concerns.

- EPA studies have documented that heavy metals do not incinerate and emissions from incinerators pose a significant health risk. The cement kiln would be generating heavy metal emissions and most of them are toxic to humans.
- Worldwide studies have revealed that mercury entering an aquatic system will accumulate in the food chain. Fish are particularly susceptible to accumulating high amounts of these toxins in their tissues, which can then accumulate in the tissues of the birds and mammals who eat them. And ultimately, in humans who eat the contaminated fish and animals.
- WHO reports recent evidence that 10,000 people in England and Wales die prematurely each year from respiratory or heart conditions due to particulates. MAFF (Ministry of Agriculture, Food & Fisheries) showed dioxin levels to be 4 times higher than normal at Clitheroe Cement Kiln where prescriptions for asthma have risen 50% since they started burning chemicals and tires.

Susan and Roger Peirce
1127 Eagle Way
Lyons, CO 80540

Mr David Callahan, Current Planning Manager
Land Use Department
Courthouse Annex
2045 13th Street, Boulder CO 80302

April 24, 2003

Ref: A Request for a Determination Concerning Use by Special Review #SU-88-21 (Lyons Rubber Recycling Facility) as to Whether That Permit has Lapsed as Defined in Article 4-604 (C) of the Land Use Code

Dear Mr Callahan:

I would like to request that the Land Use Office rescind and or deny their approval of Cemex's lapsed permit.

I believe that Cemex Corporation's proposal to burn 700,000 tires per year as supplementary fuel is a well documented threat to Boulder County's public health.

I believe it is inappropriate to allow Cemex to use a lapsed permit to facilitate the burning of tires at their Lyons, Colorado plant.

I request the Land Use Office, the Boulder County Commissioners and the Health Department take immediate action to protect our community from the dangers of Cemex's proposal to burn tires by denying Cemex Corporation's permit.

As an inhabitant of Lyons/ Boulder County and hence at direct risk of harm, I am very concerned about the potential environmental hazard posed by this proposal and respectfully request that you take action to prevent the burning of tires at the Cemex plant.

Thank you in anticipation of your positive action.

Yours sincerely,

Susan + Roger Peirce

(1)

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

MEMO TO: Adjacent Property Owners and Interested Others
FROM: David Callahan, Current Planning Manager
DATE: Thursday, April 17, 2003
RE: **PUBLIC MEETING**
BOULDER COUNTY, COLORADO
BOARD OF COUNTY COMMISSIONERS

A Request for a Determination Concerning Use by Special Review #SU-88-21 (Lyons Rubber Recycling Facility) as to Whether That Permit has Lapsed as Defined in Article 4-604 (C) of the Land Use Code.

Location: At 5134 Ute Highway
Zoning: General Industrial (GI)
Applicant: Cemex / John Lohr, Lyons Cement Plant

DATE: **May 8, 2003**
TIME: **2:00 p.m.**
PLACE: **Hearing Room, Third Floor, County Courthouse, Boulder**

Notice is hereby given that the Board of County Commissioners will hold a public meeting at the time and place specified above. All interested parties are requested to attend the meeting and aid the Commissioners in their consideration.

The Land Use staff, and County Commissioners value comments from individuals. If you are so inclined, please check the appropriate response below or send a letter. Late responses will be reviewed as the process permits; all comments will be made part of the public record and given to the applicant. Only portions of the submitted documents have been enclosed; you are welcome to review the entire file at the Land Use Department, 13th and Spruce, Boulder. (Ninety-seven pages of support materials have been submitted by Cemex, Inc. The materials include copies of various permits, application forms, letters, and analyses.) If you have any questions regarding this application, please contact the Land Use Department office.

Please return responses to the above address by May 1, 2003.
____ We have reviewed the proposal and have no conflicts.
__X__ Letter is enclosed.

Signed [signature] PRINTED Name DEIRDRE BUTLER

Agency or Address PRESIDENT ROAD ASSOCIATION - APPLE RIDGE ROAD, LYONS
P.O. BOX 1337, LYONS, CO 80540.

G:\88REF.DOC\03REF.DOC

Jana L. Mendez
County Commissioner

Ronald K. Stewart
County Commissioner

Paul Danish
County Commissioner

Deirdre Butler
PO Box 1337
Lyons, CO 80540-1337

Mr David Callahan, Current Planning Manager
Land Use Department
Courthouse Annex
2045 13th Street
13th & Spruce Streets, Boulder CO 80302

April 23, 2003

Ref: A Request for a Determination Concerning Use by Special Review #SU-88-21 (Lyons Rubber Recycling Facility) as to Whether That Permit has Lapsed as Defined in Article 4-604 (C) of the Land Use Code

Dear Mr Callahan:

I would like to request that the Land Use Office rescind and or deny their approval of Cemex's lapsed permit.

I believe that Cemex Corporation's proposal to burn 700,000 tires per year as supplementary fuel is a well documented threat to Boulder County's public health.

I believe it is inappropriate to allow Cemex to use a lapsed permit to facilitate the burning of tires at their Lyons, Colorado plant.

I request the Land Use Office, the Boulder County Commissioners and the Health Department take immediate action to protect our community from the dangers of Cemex's proposal to burn tires by denying Cemex Corporation's permit.

As an inhabitant of Lyons and hence at direct risk of harm, I am very concerned about the potential environmental hazard posed by this proposal and respectfully request that you take action to prevent the burning of tires at the Cemex plant.

Thank you in anticipation of your positive action.

Yours sincerely,

Deirdre Butler
President, Apple Ridge Road Association, Lyons

Mr David Callahan, Current Planning Manager
Land Use Department
Courthouse Annex
2045 13th Street, Boulder CO 80302

April 24, 2003

Ref: A Request for a Determination Concerning Use by Special Review #SU-88-21 (Lyons Rubber Recycling Facility) as to Whether That Permit has Lapsed as Defined in Article 4-604 (C) of the Land Use Code

Dear Mr Callahan:
I would like to request that the Land Use Office rescind and or deny their approval of Cemex's lapsed permit.
I believe that Cemex Corporation's proposal to burn 700,000 tires per year as supplementary fuel is a well-documented threat to Boulder County's public health.
I believe it is inappropriate to allow Cemex to use a lapsed permit to facilitate the burning of tires at their Lyons, Colorado plant.
I request the Land Use Office, the Boulder County Commissioners and the Health Department take immediate action to protect our community from the dangers of Cemex's proposal to burn tires by denying Cemex Corporation's permit.
As an inhabitant of Lyons/ Boulder County and hence at direct risk of harm, I am very concerned about the potential environmental hazard posed by this proposal and respectfully request that you take action to prevent the burning of tires at the Cemex plant.
Thank you in anticipation of your positive action.
Yours sincerely,

Sally Kelly
618 Apple Valley Rd
Lyons. Co. 80540
sallywhiteking@yahoo.com

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

RECEIVED
APR 28 2003
BOULDER COUNTY
LAND USE DEPT.

MEMO TO: Adjacent Property Owners and Interested Others
FROM: David Callahan, Current Planning Manager
DATE: Thursday, April 17, 2003
RE: **PUBLIC MEETING**
BOULDER COUNTY, COLORADO
BOARD OF COUNTY COMMISSIONERS

A Request for a Determination Concerning Use by Special Review #SU-88-21(Lyons Rubber Recycling Facility) as to Whether That Permit has Lapsed as Defined in Article 4-604 (C) of the Land Use Code.

Location: At 5134 Ute Highway
Zoning: General Industrial (GI)
Applicant: Cemex / John Lohr, Lyons Cement Plant

DATE: **May 8, 2003**
TIME: **2:00 p.m.**
PLACE: **Hearing Room, Third Floor, County Courthouse, Boulder**

Notice is hereby given that the Board of County Commissioners will hold a public meeting at the time and place specified above. All interested parties are requested to attend the meeting and aid the Commissioners in their consideration.

The Land Use staff, and County Commissioners value comments from individuals. If you are so inclined, please check the appropriate response below or send a letter. Late responses will be reviewed as the process permits; all comments will be made part of the public record and given to the applicant. Only portions of the submitted documents have been enclosed; you are welcome to review the entire file at the Land Use Department, 13th and Spruce, Boulder. (Ninety-seven pages of support materials have been submitted by Cemex, Inc. The materials include copies of various permits, application forms, letters, and analyses.) If you have any questions regarding this application, please contact the Land Use Department office.

Please return responses to the above address by **May 1, 2003**.
_____ We have reviewed the proposal and have no conflicts.
__X__ Letter is enclosed.

Signed Kayann Short PRINTED Name Kayann Short

Agency or Address Stonebridge Farm
5169 Ute Hwy
Longmont, CO 80503

G:\88REF.DOC\03REF.DOC

Jana L. Mendez
County Commissioner

Ronald K. Stewart
County Commissioner

Paul Danish
County Commissioner

April 27, 2003

Dear Boulder County Land Use Office,

We operate an organic Community Supported Agricultural farm (CSA) across Ute Highway from Cemex and have had ample opportunity to view Cemex's policies, procedures, and problems. We oppose the burning of tires by Cemex for three main reasons. First, tire burning presents an unacceptable health and environmental risk to the Lyons/Longmont community. Tire burning is not unquestionably cleaner than coal, particularly in kilns that were not built for incinerating such materials. Cemex's retrofitted kilns would not provide optimal conditions for such burning, nor would tire burning even under optimal conditions prove beneficial to the community that breathes the air Cemex contaminates. While coal burning also compromises air quality, tire burning is not an acceptable alternative.

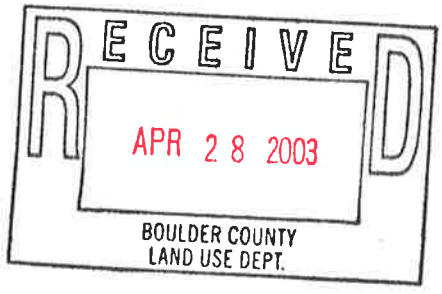
Second, transporting tires on Highway 66 would increase the already heavy truck traffic that endangers lives. Currently, a large number of cement semis pull in and out of the Cemex plant across from our farm everyday. Semis pulling trailers full of old tires would pose an added and unnecessary risk. Additionally, Cemex has continually refused to address the noise violations of trucks using "jake brakes" to decrease speed before they turn off 66 to enter the plant. In fact, when we contacted one manager about the problem, he incredulously exclaimed, "Have you ever tried to talk to a trucker? They'd just laugh in your face!"

Cemex's refusal to enforce noise restrictions is related to our third objection to tire burning: Cemex's unwillingness to take problems seriously. As the St. Vrain Valley Watchdogs have meticulously documented, Cemex has continuously failed to monitor or prevent hazardous dust plumes during plant operations. They have not been good neighbors and do not inspire confidence that they can ever be.

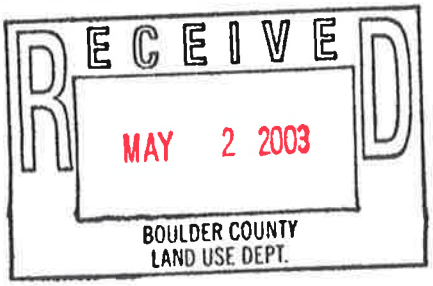
We strongly urge the Land Use offic to oppose tire burning by Cemex in order to protect the health of Boulder County residents and the beautiful environment that we all enjoy.

Sincerely,

Kayann Short and John Martin
Stonebridge Farm
5169 Ute Highway
Longmont, CO



Sandra Laemmle, MA, ATR, LPAT
P.O. Box 818 / 940 Blue Mountain Road
Lyons, CO 80540



Mr David Callahan, Current Planning Manager
Land Use Department
Courthouse Annex
2045 13th Street, Boulder CO 80302

April 27, 2003

Ref: A Request for a Determination Concerning Use by Special Review #SU-88-21 (Lyons Rubber Recycling Facility) as to Whether That Permit has Lapsed as Defined in Article 4-604 (C) of the Land Use Code

Dear Mr Callahan:

I would like to request that the Land Use Office rescind and or deny their approval of Cemex's lapsed permit.
I believe that Cemex Corporation's proposal to burn 700,000 tires per year as supplementary fuel is a well-documented threat to Boulder County's public health.
I believe it is inappropriate to allow Cemex to use a lapsed permit to facilitate the burning of tires at their Lyons, Colorado plant.
I request the Land Use Office, the Boulder County Commissioners and the Health Department take immediate action to protect our community from the dangers of Cemex's proposal to burn tires by denying Cemex Corporation's permit.
As an inhabitant of Lyons/ Boulder County and hence at direct risk of harm, I am very concerned about the potential environmental hazard posed by this proposal and respectfully request that you take action to prevent the burning of tires at the Cemex plant.
Thank you in anticipation of your positive action.

Yours sincerely,

Sandra Laemmle

Sandra Laemmle

JUDSON C. HITE
ATTORNEY

250 ARAPAHOE AVENUE, SUITE 301
BOULDER, COLORADO 80302
TELEPHONE (303) 938-1231
FACSIMILE (303) 938-1526



May 15, 2003

Mr. David Callahan
Current Planning Manager
Boulder County Colorado Land Use Department
2045 13th Street
Boulder, CO 80306

Re: Request for Determination Concerning Use by Special Review #SU-88-21 (Lyons Rubber Recycling Facility) as to Whether Permit Lapsed as Defined in Article 4-604(C) of the Land Use Code

Dear Mr. Callahan:

I represent Mr. Barry J. Lind, the owner of certain real estate in Boulder County located near the above-reference facility ("Facility"). This letter responds to your April 17, 2003 memorandum to Mr. Lind soliciting his comment regarding the department's determination of whether the Facility's special use permit has lapsed due to non-use.

Mr. Lind's paramount concern, as the owner of a substantial home located south of the Facility, is that tire-derived fuel should never fuel the Facility. The health and safety issues associated with the waste generated by the incineration of tires, be they airborne, solid or liquid byproducts, compounded by the risks inherent in transporting, handling and storing vast quantities of waste tires on-site, are far too great to allow such activities to occur in any proximity to an ever-increasing residential demography.

Beyond health and safety concerns, permitting the incineration of waste tires will destroy local real estate values, which, just in the neighborhood nearest the Facility, represent investments totaling in excess of $25 million. These investments would not have been made had the Facility been understood to be utilizing tire-derived fuel, which, of course, the Facility has NOT been utilizing. Nor are the Facility's neighbors, including residents similarly situated to Mr. Lind, on notice that such activity is even remotely possible – the Facility has been "sitting" on its special use permit (the "Permit") for 14 years.

As a legal matter, the ownership of the Facility argues that the provisions of Section 4-406(C) of the Boulder County Land Use Code (the "Lapse Law") should not be applied retroactively to the Permit, which was issued on or about May 30, 1989. The Lapse Law was adopted in 1996, providing in part, that if there is no activity under any portion of a special use permit for a continuous period of five years, the permit shall lapse. As applied to the Facility, the Lapse Law is not being applied retroactively, it is being applied prospectively, from the point of its enactment forward by five years to 2001. Indeed, this is the exact determination reached by the Boulder County District Court in Sierra Club v. Billingsley (Case No. 02CV1616), a case filed challenging the County's application of the Lapse Law to the Permit.

Thus, the gavaman of the Land Use Department's analysis should be on what activities the Facility undertook under the Permit between 1996 and 2001. What is abundantly clear in the Facility's voluminous submissions on this matter is that from the time the Permit issued to the present the only activities undertakes were all incidental to obtaining federal and state air pollution control permits and a state hazardous materials storage facility permit. The Facility's proffered record indicates that no activities authorized by the Permit were actually undertaken at the Facility during the relevant time period. Clearly the Lapse Law applies, and the Permit must be deemed inactive. Indeed, as you are aware, the Court in Sierra Club v. Billingsley has directed the Boulder County Board of Adjustment to perform this exact analysis of the Facility's activities, or lack thereof, under the Permit.

Moreover, in finding that the Permit has lapsed, the Land Use Department will then be able to perform its mandated, and invaluable services of requiring the Facility to submit a new permit application, requiring and allowing for the consideration of the changing demographics of the impacted area. Obviously, following the issuance of the Permit in 1989, the character and degree of development in the immediate vicinity of the Facility, as well as that of the entire down-plume population, has changed markedly. The County Commissioners have a duty to re-examine the impacts of the Facility on those communities now that the Facility is seemingly ready and claiming an ability to start burning waste tires. It is unfair and unwise to allow a permitee to hold an unused permit for nearly 15 years, without being subject to periodic review and renewal obligations, and then claim a right to operate under such permit while the surrounding community and circumstances have changed dramatically – as they have in this case.

Consequently, with all due respect, the Permit must be deemed to have lapsed, and at the very least, the Facility required to submit a new permit application, at which time all affected parties can meaningfully participate in this process.

Thank you for your consideration of these comments. If you have questions or comments, please contact me.

Very truly yours,

Judson C. Hite

cc: Mr. Barry J. Lind

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

MEMO TO: Adjacent Property Owners and Interested Others
FROM: David Callahan, Current Planning Manager
DATE: Thursday, April 17, 2003
RE: **PUBLIC MEETING**
BOULDER COUNTY, COLORADO
BOARD OF COUNTY COMMISSIONERS

RECEIVED
MAY 22 2003
BOULDER COUNTY

A Request for a Determination Concerning Use by Special Review #SU-88-21 (Lyons Rubber Recycling Facility) as to Whether That Permit has Lapsed as Defined in Article 4-604 (C) of the Land Use Code.

Location: At 5134 Ute Highway
Zoning: General Industrial (GI)
Applicant: Cemex / John Lohr, Lyons Cement Plant

DATE: **May 8, 2003**
TIME: **2:00 p.m.**
PLACE: **Hearing Room, Third Floor, County Courthouse, Boulder**

Notice is hereby given that the Board of County Commissioners will hold a public meeting at the time and place specified above. All interested parties are requested to attend the meeting and aid the Commissioners in their consideration.

The Land Use staff, and County Commissioners value comments from individuals. If you are so inclined, please check the appropriate response below or send a letter. Late responses will be reviewed as the process permits; all comments will be made part of the public record and given to the applicant. Only portions of the submitted documents have been enclosed; you are welcome to review the entire file at the Land Use Department, 13th and Spruce, Boulder. (Ninety-seven pages of support materials have been submitted by Cemex, Inc. The materials include copies of various permits, application forms, letters, and analyses.) If you have any questions regarding this application, please contact the Land Use Department office.

Please return responses to the above address by **May 1, 2003**.

_____ We have reviewed the proposal and have no conflicts.
__✓__ Letter is enclosed. much more information is needed before cause approved.

Signed Clemens M Hansen PRINTED Name Clemens M Hansen

Agency or Address until then my answer would be not approved.

G:\88REF.DOC\03REF.DOC

How much pollution will this cause in the close area?

Jana L. Mendez
County Commissioner

Ronald K. Stewart
County Commissioner

Paul Danish
County Commissioner

Mr David Callahan, Current Planning Manager
Land Use Department
Courthouse Annex
2045 13th Street, Boulder CO 80302

RECEIVED
APR 30 2003
BOULDER COUNTY
LAND USE DEPT.

April 26, 2003

Ref: A Request for a Determination Concerning Use by Special Review #SU-88-21 (Lyons Rubber Recycling Facility) as to Whether That Permit has Lapsed as Defined in Article 4-604 (C) of the Land Use Code

Dear Mr Callahan:

I would like to request that the Land Use Office rescind and or deny their approval of Cemex's lapsed permit.

I believe that Cemex Corporation's proposal to burn 700,000 tires per year as supplementary fuel is a well documented threat to Boulder County's public health.

I believe it is inappropriate to allow Cemex to use a lapsed permit to facilitate the burning of tires at their Lyons, Colorado plant.

I request the Land Use Office, the Boulder County Commissioners and the Health Department take immediate action to protect our community from the dangers of Cemex's proposal to burn tires by denying Cemex Corporation's permit.

As an inhabitant of Lyons/ Boulder County and hence at direct risk of harm, I am very concerned about the potential environmental hazard posed by this proposal and respectfully request that you take action to prevent the burning of tires at the Cemex plant.

Thank you in anticipation of your positive action.

Yours sincerely,

Lyndsey Graves

Lyndsey Graves

Peter Butler
PO Box 1337
Lyons, CO 80540-1337
USA

+1 303 823-8649
peter@cogico.com

RECEIVED
APR 30 2003
BOULDER COUNTY
LAND USE DEPT.

David Callahan
Land Use Department
2045 13th Street
Boulder CO 80302

Reference: Do NOT allow Cemex Tire Burning in Lyons

Dear Sir

My wife and I live in Lyons, on Apple Ridge just off Apple Valley Road, and own a tract of land that is designated as a conservation easement.

We strongly urge Boulder County NOT to allow the Cemex Corporation to burn tires in their cement kiln. Using tires as fuel is completely unacceptable for many reasons. The kiln is not hot enough to guarantee completely destroy organic compounds such as dioxins and furans which are known to be carcinogenic. The cement kiln bag house filter system is not efficient enough to remove all heavy metals which would be present in the steel reinforcement in the tires.

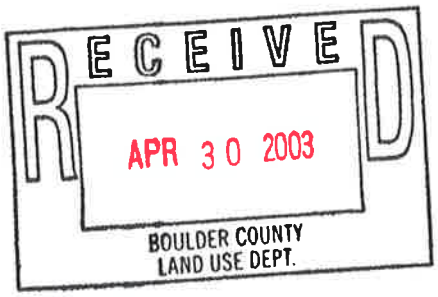
If tires are burned at Cemex, all manner of poisons will accumulate on our land and be washed into St Vrain Creek and eventually into the local water supply.

Please do not grant a license to Cemex Corporation allowing them to burn tires.

Yours sincerely

Peter Butler

Mr David Callahan, Land Use Department
Courthouse Annex, 2045 13th Street
Boulder CO 80302



April 25, 2003

Ref: A Request for a Determination Concerning Use by Special Review #SU-88-21 (Lyons Rubber Recycling Facility) as to Whether That Permit has Lapsed as Defined in Article 4-604 (C) of the Land Use Code

Dear Mr Callahan:

I would like to request that the Land Use Office rescind and or deny its approval of Cemex's lapsed permit. I believe that Cemex Corporation's proposal to burn 700,000 tires per year as supplementary fuel is a threat to Boulder County's public health.

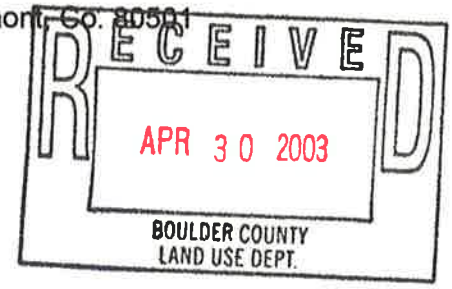
I request the Land Use Office, the Health Department, and the Boulder County Commissioners take immediate action to protect our community from the dangers of Cemex's proposal to burn tires by denying Cemex Corporation's permit. As an inhabitant of Lyons and hence at direct risk of harm, I am concerned about the potential environmental hazard posed by this proposal and respectfully request that you take action to prevent the burning of tires at the Cemex plan. Thank you.

Yours sincerely,

Sara Neustadtl

Sara Neustadtl
590 Pioneer Rd.
Lyons, CO 80540

Marilyn and David Hughes
1126 4th Ave.
Longmont, Co. 80501



Mr David Callahan, Current Planning Manager
Land Use Department
Courthouse Annex
2045 13th Street, Boulder CO 80302

April 29, 2003

Ref: A Request for a Determination Concerning Use by Special Review #SU-88-21 (Lyons Rubber Recycling Facility) as to Whether That Permit has Lapsed as Defined in Article 4-604 (C) of the Land Use Code

Dear Mr Callahan:

We would like to request that the Land Use Office rescind and or deny their approval of Cemex's lapsed permit.

We are concerned that Cemex Corporation's proposal to burn 700,000 tires per year as supplementary fuel is a well documented threat to Boulder County's public health.

We think it is inappropriate to allow Cemex to use a lapsed permit to facilitate the burning of tires at their Lyons, Colorado plant.

We request the Land Use Office, the Boulder County Commissioners and the Health Department take immediate action to protect our community from the dangers of Cemex's proposal to burn tires by denying Cemex Corporation's permit.

As we are very concerned about the potential environmental hazard posed by this proposal and respectfully request that you take action to prevent the burning of tires at the Cemex plant.

Thank you in anticipation of your positive action.

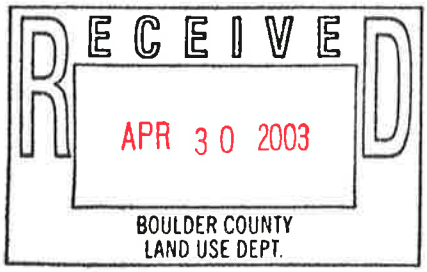
Yours sincerely,

David Hughes
Marilyn Hughes

David & Marilyn Hughes

Kimberly Martin
3455 Table Mesa Dr. #L-237
Boulder, CO 80305

Mr David Callahan, Current Planning Manager
Land Use Department
Courthouse Annex
2045 13th Street, Boulder CO 80302



April 26, 2003

Ref: A Request for a Determination Concerning Use by Special Review #SU-88-21 (Lyons Rubber Recycling Facility) as to Whether That Permit has Lapsed as Defined in Article 4-604 (C) of the Land Use Code

Dear Mr Callahan:

I would like to request that the Land Use Office rescind and or deny their approval of Cemex's lapsed permit.

I believe that Cemex Corporation's proposal to burn 700,000 tires per year as supplementary fuel is a well documented threat to Boulder County's public health.

I believe it is inappropriate to allow Cemex to use a lapsed permit to facilitate the burning of tires at their Lyons, Colorado plant.

I request the Land Use Office, the Boulder County Commissioners and the Health Department take immediate action to protect our community from the dangers of Cemex's proposal to burn tires by denying Cemex Corporation's permit.

As an inhabitant of Lyons/ Boulder County and hence at direct risk of harm, I am very concerned about the potential environmental hazard posed by this proposal and respectfully request that you take action to prevent the burning of tires at the Cemex plant.

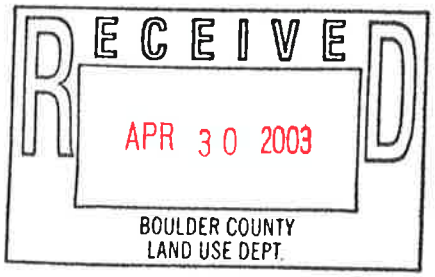
Thank you in anticipation of your positive action.

Yours sincerely,

Kimberly Martin

Danielle Goodman
1750 30th St. #323
Boulder, CO 80301

Mr David Callahan, Current Planning Manager
Land Use Department
Courthouse Annex
2045 13th Street, Boulder CO 80302



April 26, 2003

Ref: A Request for a Determination Concerning Use by Special Review #SU-88-21 (Lyons Rubber Recycling Facility) as to Whether That Permit has Lapsed as Defined in Article 4-604 (C) of the Land Use Code

Dear Mr Callahan:

I would like to request that the Land Use Office rescind and or deny their approval of Cemex's lapsed permit.

I believe that Cemex Corporation's proposal to burn 700,000 tires per year as supplementary fuel is a well documented threat to Boulder County's public health.

I believe it is inappropriate to allow Cemex to use a lapsed permit to facilitate the burning of tires at their Lyons, Colorado plant.

I request the Land Use Office, the Boulder County Commissioners and the Health Department take immediate action to protect our community from the dangers of Cemex's proposal to burn tires by denying Cemex Corporation's permit.

As an inhabitant of Lyons/ Boulder County and hence at direct risk of harm, I am very concerned about the potential environmental hazard posed by this proposal and respectfully request that you take action to prevent the burning of tires at the Cemex plant.

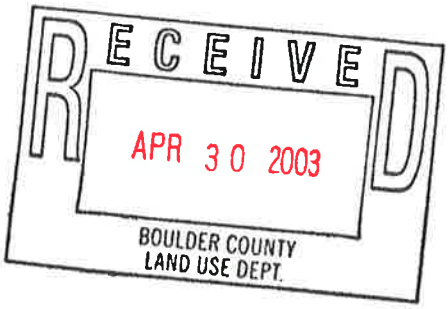
Thank you in anticipation of your positive action.

Yours sincerely,

Danielle Goodman

Meredith Orr
2142 Canyon Blvd. #205
Boulder,CO 80302

Mr David Callahan, Current Planning Manager
Land Use Department
Courthouse Annex
2045 13th Street, Boulder CO 80302



April 26, 2003

Ref: A Request for a Determination Concerning Use by Special Review #SU-88-21 (Lyons Rubber Recycling Facility) as to Whether That Permit has Lapsed as Defined in Article 4-604 (C) of the Land Use Code

Dear Mr Callahan:

I would like to request that the Land Use Office rescind and or deny their approval of Cemex's lapsed permit.

I believe that Cemex Corporation's proposal to burn 700,000 tires per year as supplementary fuel is a well documented threat to Boulder County's public health.

I believe it is inappropriate to allow Cemex to use a lapsed permit to facilitate the burning of tires at their Lyons, Colorado plant.

I request the Land Use Office, the Boulder County Commissioners and the Health Department take immediate action to protect our community from the dangers of Cemex's proposal to burn tires by denying Cemex Corporation's permit.

As an inhabitant of Lyons/ Boulder County and hence at direct risk of harm, I am very concerned about the potential environmental hazard posed by this proposal and respectfully request that you take action to prevent the burning of tires at the Cemex plant.

Thank you in anticipation of your positive action.

Yours sincerely,

Meredith Orr

Boulder County

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

COMMISSIONERS' OFFICE
MAY 01 2003
COPY

MEMO TO: Adjacent Property Owners and Interested Others
FROM: David Callahan, Current Planning Manager
DATE: Thursday, April 17, 2003
RE: **PUBLIC MEETING**
BOULDER COUNTY, COLORADO
BOARD OF COUNTY COMMISSIONERS

A Request for a Determination Concerning Use by Special Review #SU-88-21(Lyons Rubber Recycling Facility) as to Whether That Permit has Lapsed as Defined in Article 4-604 (C) of the Land Use Code.

Location: At 5134 Ute Highway
Zoning: General Industrial (GI)
Applicant: Cemex / John Lohr, Lyons Cement Plant

DATE: **May 8, 2003**
TIME: **2:00 p.m.**
PLACE: **Hearing Room, Third Floor, County Courthouse, Boulder**

Notice is hereby given that the Board of County Commissioners will hold a public meeting at the time and place specified above. All interested parties are requested to attend the meeting and aid the Commissioners in their consideration.

The Land Use staff, and County Commissioners value comments from individuals. If you are so inclined, please check the appropriate response below or send a letter. Late responses will be reviewed as the process permits; all comments will be made part of the public record and given to the applicant. Only portions of the submitted documents have been enclosed; you are welcome to review the entire file at the Land Use Department, 13th and Spruce, Boulder. (Ninety-seven pages of support materials have been submitted by Cemex, Inc. The materials include copies of various permits, application forms, letters, and analyses.) If you have any questions regarding this application, please contact the Land Use Department office.

Please return responses to the above address by **May 1, 2003**.

___ We have reviewed the proposal and have no conflicts.
_✓_ Letter is enclosed.

Signed Jennifer Ellen Murnan PRINTED Name JENNIFER ELLEN MURNAN

Agency or Address 5125 UTE HWY LONGMONT, CO 80503

G:\88REF.DOC\03REF.DOC

Jana L. Mendez
County Commissioner

Ronald K. Stewart
County Commissioner

Paul Danish
County Commissioner

May 1st 2003

cc. BOCC
Health
Lt. Governor
Pitkin

To The Boulder County Commissioners,

I live directly across from The entrance to Cemex. Everyday I deal with The noise pollution created by The plant. Train whistles, The roar of plant operations, truck traffic, we can't hold a conversation on The front yard. My neighbors, The McCains, regularly wear masks when mowing because of The cement dust spilled by trucks turning onto The highway. There is gray dust in our house all The time. I have no desire to add a load of toxic burning tire fumes to The compromised air I already breathe.

You permitted The plant to construct a tube over The highway creating a visual monstrosity that we endure every day. Please don't add more invisible insult to The injury you have already allowed.

Sincerely -

Jennifer Ellen Moore